

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ben Gilmore	Team: Squad #15	CCRB Case #: 201605988	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Tuesday, 07/05/2016 12:33 PM	Location of Incident: § 87(2)(b)		18 Mo. SOL 1/5/2018		Precinct: 71
Date/Time CV Reported Tue, 07/12/2016 3:09 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 07/12/2016 3:09 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Luis Lopez	27415	930590	071 PCT
2. An officer			Unknown
3. SGT Fitzroy Vigilance	04583	918667	071 PCT
4. POM Ryan Hayes	21873	947068	071 PCT
5. POM Matthew Weinstein	19780	931410	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DTS Robert Francis	05706	925311	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Luis Lopez	Abuse: Police Officer Luis Lopez entered § 87(2)(b), in Brooklyn.	A . Substantiated
B . POM Ryan Hayes	Abuse: Police Officer Ryan Hayes entered § 87(2)(b), in Brooklyn.	B . Substantiated
C . POM Luis Lopez	Discourtesy: Inside § 87(2)(b), in Brooklyn, Police Officer Luis Lopez spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . SGT Fitzroy Vigilance	Force: Inside of § 87(2)(b), in Brooklyn, Sergeant Fitzroy Vigilance used physical force against § 87(2)(b)	D . Exonerated
E . POM Matthew Weinstein	Force: Inside § 87(2)(b), in Brooklyn, Police Officer Matthew Weinstein used physical force against § 87(2)(b)	E . Exonerated
F . SGT Fitzroy Vigilance	Force: In front of § 87(2)(b) in Brooklyn, Sergeant Fitzroy Vigilance used physical force against § 87(2)(b)	F . Unfounded
G . POM Matthew Weinstein	Force: In front of § 87(2)(b) in Brooklyn, Police Officer Matthew Weinstein used physical force against § 87(2)(b)	G . Unfounded
H . An officer	Force: In front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)	H . Officer(s) Unidentified
I . An officer	Force: In front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)	I . Officer(s) Unidentified
J . POM Luis Lopez	Force: In front of § 87(2)(b) in Brooklyn, Police Officer Luis Lopez used physical force against § 87(2)(b)	J . Unfounded

Officer(s)	Allegation	Investigator Recommendation
K . POM Matthew Weinstein	Force: In front of § 87(2)(b) Brooklyn, Police Officer Matthew Weinstein used physical force against § 87(2)(b)	K . Unfounded
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 12, 2016, § 87(2)(b) called the CCRB to file this complaint on behalf of himself and his girlfriend, § 87(2)(b).

On July 5, 2016, at approximately 12:33 p.m., § 87(2)(b) and their two daughters—one of whom is § 87(2)(b) years old and one of whom is § 87(2)(b) year old—were inside their apartment, § 87(2)(b) in Brooklyn. § 87(2)(b) and § 87(2)(b) engaged in a verbal argument over a television bill. § 87(2)(b) called 911 and reported that she and § 87(2)(b) were arguing, that he had pushed her, that there were no injuries and no weapons, and that she wanted him removed from the apartment (Board Review 27). Central Communications then broadcast over the police radio that there was a family dispute at § 87(2)(b), and no further information was provided (Board Review 28).

§ 87(2)(b) and § 87(2)(b) alleged that without any forewarning or invitation, PO Luis Lopez and PO Ryan Hayes, both from the 71st Precinct, entered the apartment (**Allegations A and B**). § 87(2)(b) alleged that PO Lopez called him a “pussy,” “bitch,” and said that he was from the “hood.” (**Allegation C**). § 87(2)(b) held his § 87(2)(b) year old daughter in his arms, and PO Lopez repeatedly told him to put her down. When § 87(2)(b) refused, PO Lopez called for backup.

Sgt. Fitzroy Vigilance and PO Matthew Weinstein, both from the 71st Precinct, responded to the apartment. § 87(2)(b) alleged that immediately after he set his daughter down, Sgt. Vigilance and PO Weinstein tackled him to the ground (**Allegations D and E**). § 87(2)(b) was secured in handcuffs. § 87(2)(b) alleged that he was carried out of the apartment building by Sgt. Vigilance, PO Weinstein, and an unidentified officer, and was dropped onto the ground, causing him to chip his top front tooth (**Allegations F through H**). § 87(2)(b) alleged that either Sgt. Vigilance or PO Weinstein—he was not sure which—pressed their knee into his lower back (**Allegation I**). § 87(2)(b) alleged that PO Lopez kicked him in his left arm one time (**Allegation J**). § 87(2)(b) alleged that PO Weinstein pulled § 87(2)(b)'s arms high above his back (**Allegation K**).

§ 87(2)(b) was placed in a police vehicle and transported to the 71st Precinct stationhouse, where he was charged with three misdemeanors: § 87(2)(b) (Board Review 01).

There is no video footage of this incident.

This case surpassed 90 days due to difficulties identifying officers and delays in obtaining the relevant 911 call audio recording.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to the arrest of § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the New York City Comptroller's Office, as of October 24, 2016 (Board Review 03).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the third CCRB complaint involving § 87(2)(b) but the first case in which he has cooperated (Board Review 05). § 87(2)(b)
- This is the first CCRB complaint involving § 87(2)(b) (Board Review 06).
- PO Lopez has been a member-of-service for 14 years, and there have been two previous CCRB allegations made against him, neither of which were substantiated, § 87(2)(g)
- PO Hayes has been a member-of-service for eight years, and he has been the subject of one previous CCRB allegation, which was unsubstantiated. § 87(2)(g)
- Sgt. Vigilance has been a member-of-service for 19 years, and there have been 38 previous CCRB allegations made against him, none of which were substantiated. Of the 38 previous allegations, 14 were force allegations, § 87(2)(g)
- PO Weinstein has been a member-of-service for 14 years, and there have been nine previous CCRB allegations made against him, none of which were substantiated. Of the nine previous allegations, five were force allegations, § 87(2)(g)

Potential Issues

§ 87(2)(b) provided a telephone statement to the CCRB (Board Review 07), but she did not cooperate in providing a sworn statement (see Investigative Actions). § 87(2)(b) missed a scheduled appointment to provide a sworn statement and then did not respond to four voicemail messages or two letters mailed to her, requesting that she provide a sworn statement to the CCRB.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) (Board Review 08) alleged that he was carried outside the apartment building by Sgt. Vigilance, PO Weinstein, and an unidentified officer, who then dropped him to the ground. § 87(2)(b) described the unidentified officer as an Indian male who stood 6'0" tall, with an average build, black hair, 37 years old, and dressed in uniform. The 71st Precinct Roll Call (Board Review 09) indicated that solely three Asian male officers were working during the time of the incident: PO Jason Ribeiro, PO Sachin Scaria, and PO Gerard Maharaj. None of these officers is more than 5'10" tall (Board Review 10), and none of their memo book entries (Board Review 11) indicated they were involved in this incident. Moreover, none of the four officers who acknowledged interacting with § 87(2)(b)—PO Lopez (Board Review 12), PO Hayes (Board Review 13), Sgt. Vigilance (Board Review 14), and PO Weinstein (Board Review 15)—indicated that an Indian male officer was involved in the incident, and each denied that § 87(2)(b) was ever dropped onto the ground. The Event Information (Board Review 16) does not indicate that any additional unit responded to this incident. Additionally, PO Weinstein testified that Det. Robert Francis of the 71st Precinct was present, but Det. Francis (Board Review 25) denied being involved in the incident. § 87(2)(g)

§ 87(2)(b) alleged that after he was dropped onto the ground outside the apartment building, either PO Weinstein or Sgt. Vigilance—he was not sure which—applied pressure to his

back with their knee. No officer interviewed indicated that this occurred, and § 87(2)(b) indicated that she did not see what occurred outside the apartment building. Lacking evidence to indicate which officer allegedly forced their knee against § 87(2)(b) back, § 87(2)(g)

Allegation Not Pleaded

§ 87(2)(b) alleged that PO Lopez threatened to fight § 87(2)(b) but § 87(2)(b) the would-be victim of this allegation, did not allege that this occurred. § 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Luis Lopez entered § 87(2)(b) in Brooklyn.

Allegation B – Abuse of Authority: Police Officer Ryan Hayes entered § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is undisputed that on July 5, 2016, at approximately 12:33 p.m., § 87(2)(b) and § 87(2)(b) were having a verbal argument inside their apartment. Unbeknownst to § 87(2)(b) § 87(2)(b) called 911 and reported that she was having a dispute with § 87(2)(b) that he had pushed her, that she wanted him removed from the apartment, and that there were no weapons or injuries. § 87(2)(b) provided her name and call-back number to 911, and the 911 operator indicated that police were on their way and disengaged the call. Central Communications then communicated that there was a family dispute at the location, where the boyfriend § 87(2)(b) was the aggressor. No other information was provided by Central Communications. No other information appears in the Event Information (Board Review 16).

§ 87(2)(b) and § 87(2)(b) alleged that without knocking or announcing themselves, PO Lopez and PO Hayes opened the unlocked front door of the apartment and entered. § 87(2)(b) and § 87(2)(b) indicated that when PO Hayes and PO Lopez entered, their argument had essentially concluded.

Both PO Lopez and PO Hayes testified that the sole information they had when they arrived at the location was that it was a family dispute involving an aggressive boyfriend, and both indicated that, based on the radio call, they believed that there were no injuries or weapons involved. Both PO Lopez and PO Hayes testified that upon arriving at the location, the apartment door was closed, and that they waited outside the apartment for at least one minute before attempting to enter. Both PO Lopez and PO Hayes testified that from outside the apartment they could solely observe yelling from inside the apartment. PO Hayes testified that he did not recall what was being yelled, but PO Lopez testified that he heard § 87(2)(b) yell at § 87(2)(b) to get out of her face. There were no other indications of violence.

PO Lopez testified that he knocked at the door three to four times, but there was no response. PO Hayes testified that the first time that PO Lopez knocked at the door, the door inadvertently opened, and they were able to see inside the apartment. The investigation did not credit that the door was inadvertently opened, because § 87(2)(b) and PO Lopez each testified that the door was intentionally opened.

PO Lopez testified that after waiting for a few minutes, he opened the apartment door, because, “It’s a family dispute, and they’re screaming, and we’re not sure what’s going on inside, and no one’s responding to the door.”

Both PO Lopez and PO Hayes indicated that they remained outside the apartment door after it opened. Both PO Lopez and PO Hayes testified that they were able to see § 87(2)(b) and a baby, none of whom appeared injured. Both PO Lopez and PO Hayes testified that immediately after the door was opened, § 87(2)(b) yelled at them to exit the apartment, even though they were physically outside of the apartment. Both PO Lopez and PO Hayes indicated that they had a conversation with § 87(2)(b) and § 87(2)(b) about why they were there, and then they stepped foot inside the apartment solely because they needed to complete a Domestic Incident Report.

It is undisputed that PO Hayes and PO Lopez had no warrant to enter the location, nor did they have the consent of any of the occupants of the apartment to open the door or enter.

An officer may not make a warrantless and nonconsensual entry into a residence unless there are exigent circumstances or an emergency. People v. Mitchell, 39 N.Y.2d 173 (1976). (Board Review 17). Exigent circumstances solely apply to cases in which the entry is for the purpose of making an arrest or seizing evidence. Payton v. New York, 445 U.S. 573 (1980). (Board Review 18). To fall under the emergency exception to the warrant requirement, an officer must (1) have reasonable grounds to believe that there is an emergency at hand and an immediate need for their assistance for the protection of life or property; (2) the entry must not be primarily motivated by intent to arrest and seize evidence; and (3) there must be some reasonable basis to associate the emergency with the place being entered. Mitchell, at 174.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A** and **B** be closed as **Substantiated**.

Allegation C – Discourtesy: Inside of § 87(2)(b) in Brooklyn, Police Officer Luis Lopez spoke discourteously to § 87(2)(b)

It is undisputed that § 87(2)(b) questioned PO Lopez as to why he was inside his apartment, and that PO Lopez verbally responded. § 87(2)(b) alleged that PO Lopez called him a “pussy,” “bitch,” and said he was from the “hood.” § 87(2)(b) indicated that the sole other officer who was present when PO Lopez said these things was PO Hayes. § 87(2)(b) indicated that PO Lopez referenced wanting to fight § 87(2)(b) (see Allegation Not Pleaded section), but she did not expressly corroborate the aforementioned discourteous language.

PO Lopez testified that § 87(2)(b) called him a “spic,” but he denied using the alleged discourteous language. PO Hayes denied hearing PO Lopez use the alleged discourteous language.

§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as **Unsubstantiated**.

Allegation D – Force: Inside of § 87(2)(b) in Brooklyn, Sergeant Fitzroy Vigilance used physical force against § 87(2)(b)
Allegation E – Force: Inside of § 87(2)(b) in Brooklyn, Police Officer Matthew Weinstein used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) a § 87(2)(b) man, refused orders by police officers to set down his § 87(2)(b). § 87(2)(b) alleged that he eventually set her down, and that immediately thereafter, Sgt. Vigilance and PO Weinstein approached him from behind and tackled him to the ground. § 87(2)(b) was then secured in handcuffs. § 87(2)(b) denied offering any physical resistance. § 87(2)(b) corroborated that § 87(2)(b) was tackled to the ground and did not indicate that he offered any physical resistance.

Sgt. Vigilance and PO Weinstein testified that § 87(2)(b) refused multiple orders to set his daughter down, and that they had to safely force the daughter out of § 87(2)(b)'s hold. This was corroborated by PO Hayes and PO Lopez and was documented following the incident in the Online Booking Sheet (Board Review 23) and in PO Hayes's and PO Lopez's memo books (Board Review 24).

Sgt. Vigilance testified that he did not recall if § 87(2)(b) was ever taken to the ground, and he denied tackling § 87(2)(b). PO Weinstein testified that after the baby was released from § 87(2)(b) that § 87(2)(b) was taken to the ground. PO Weinstein testified that he solely pushed on § 87(2)(b)'s shoulder to assist in taking § 87(2)(b) to the ground. Sgt. Vigilance and PO Weinstein both testified that § 87(2)(b) resisted arrest by either tensing his body and flaring his legs or refusing to place his hands behind his back.

In situations in which de-escalation techniques are not safe or appropriate, an officer must use only the reasonable force necessary to gain control or custody of a subject. NYPD Patrol Guide, Section 221-01 (Board Review 26).

§ 87(2)(g)
It is therefore recommended that **Allegations D** and **E** are closed as **Exonerated**.

Allegation H – Force: In front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

Allegation I – Force: In front of § 87(2)(b) in Brooklyn, an officer used physical force against § 87(2)(b)

§ 87(2)(g)
It is therefore recommended that
Allegations H and I be closed as Officer Unidentified.

§ 87(4-b), § 87(2)(g)
.
.

Squad: 15

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date